



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

Resolution Number: KL-CY-2026-012

**The Second Amendment to The Grant Application and Authorization Act Of 2017 to
Authorize Contracting with the Federal Government for an IHS Self-Governance Compact and
Associated Funding**

At a duly called Legislative Regular Session CIX-(109) of the Legislature of the Kiowa Tribe held this 9th day of May, 2026, the following resolution and law was adopted.

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and,

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and,

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and,

WHEREAS, the Legislature of the Tribe is vested with the authority to pass laws and resolutions authorizing the Chairman of the Tribe to negotiate and enter into agreements and contracts on behalf of the Tribe pursuant to Article V, Section 6(a) of the Constitution; and,

WHEREAS, the Legislature has identified the need for clarification in statute to the protocols governing pursuit of grant monies; and,

WHEREAS, the Legislature has previously authorized and directed the Chairman to negotiate and execute Self-determination Act contracts, called “638-contracts”, pursuant to the Indian Self-Determination and Education Act of 1975, as amended, PL 93-638 (“ISDEAA”), with the federal government to assume and takeover the functions previously provided by federal agencies including the Indian Health Service (“IHS”); and,

WHEREAS, the ISDEAA also provides for Self-Governance agreements or compacts with the Tribe to aggregate 638-contracts, assume new federal functions and duties, re-design the programs, authorize funding transfers, and authorize funding carry-over, and the Tribe’s decision to aggregate current and/or future 638-contracts and turning them into one Self-Governance agreement represents a continuation of the Tribe’s self-determination to provide the Tribe with maximum control of federally-funded programs and services, and an exercise of the Tribe’s sovereignty; and,

WHEREAS, the Tribe currently contracts with the Indian Health Service (“IHS”) to administer certain functions and programs, and desires to also operate such programs and any other new programs under a Title V Self-Governance agreement; and,

WHEREAS, the Tribe currently has an ownership interest in property and buildings that may be utilized for health care purposes related to the Self-Governance agreement, and/or the Tribe intends to lease suitable property for such proposes; and,

WHEREAS, the Tribe is prepared to submit, or has already submitted, three years of the Tribe's financial audits that contain no material audit exceptions as part of its application for a Self-Governance agreement with the IHS, which demonstrates the Tribe's financial capability.

NOW THEREFORE BE IT RESOLVED, that the Legislature hereby passes the attached law entitled, "The Second Amendment to the Self-Determination 638-Contract Authorization Act of 2017 to Authorize Contracting with the Federal Government for an IHS Self-Governance Compact and Associated Funding", authorizing and directing the Chairman to negotiate and execute a Self-Governance Compact with the IHS on behalf of the Tribe, subject to ratification by the Legislature.

BE IT FURTHER RESOLVED, that the Legislature hereby authorizes the Chairman and his authorized designees to negotiate and execute 105(l) leases on tribally owned or leased buildings used to support the federal programs covered under a Self-Governance compact.

BE IT FINALLY RESOLVED, that the Legislature hereby authorizes the Chairman and his authorized designees to coordinate with the IHS Office of Self Governance, and all other appropriate agencies and organizations for the compilation of all information necessary to negotiate and execute a Self-Governance Agreement, including the authority to execute any and all required documents and take such further action as may be necessary to implement this Resolution and law.

C E R T I F I C A T I O N

The foregoing resolution KL-CY-2026-012 was duly voted upon by the Legislature on May 09, 2026, at a Legislative Regular Session CIX-(109), with a vote of (5) in favor and (0) opposed, (0) abstain, and (2) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.



Michael Q. Primus II
Michael Q. Primus II
Speaker of the Legislature

LEGISLATURE - RESOLUTION NO. KL-CY-2026-012:**SPONSOR:** Cole Kickingbird-DeLaune, District 4**CO-SPONSOR(S):**

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héngyádàu
Kyle Ataddlety District 1	X			
Michael Q. Primus II District 2				X
Timothy Satepauhoodle District 3	X			
Cole Kickingbird-DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6	X			
Warren Queton District 7	X			

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. **KL-CY-2026-012** was presented to the Chairman of the Kiowa Tribe on the ____ day of **May 15, 2026**, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.


Michael Q. Primus II
Speaker of the Legislature

CHAIRMAN'S ACTION:

☒ APPROVED

☐ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

On this 19th day of May, 2026.



David B. Sullivan
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the _____ day of _____, 2026.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

CERTIFICATION

The foregoing resolution Legislative Override Order KLO-CY-2026-00X was duly voted upon by the Legislature on _____, 2026, at a Legislative Order Session () with a vote of _____ in favor and _____ opposed, and _____ abstaining, and _____ absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Q. Primus II
Speaker of the Legislature

Override Order KLO-CY-2026-00X

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héñgyádàu
Kyle Ataddlety District 1				
Michael Q. Primus II District 2				
Timothy Satepauhoodle District 3				
Cole Kickingbird-DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

Section 1.1 Short Title

This enactment shall be known as, “The Second Amendment to the Self-Determination 638-Contact Authorization Act of 2017 To Authorize Contracting with the Federal Government for an IHS Self-Governance Compact and Associated Funding” or the “IHS Self-Governance Compact Act” (“Act”).

Section 1.2 Purpose

The purpose of this Act is to authorize and direct the Chairman to negotiate and execute a Self-Governance Compact with the Indian Health Service (“IHS”) as authorized under the Indian Self-Determination and Education Assistance Act of 1975, as amended.

Section 1.3 Findings

The Legislature hereby finds and declares that:

- (a) The Kiowa Tribe is a federally recognized Indian Tribe (“Tribe”) with a constitution approved by the Secretary of the Interior (“Constitution”); and,
- (b) The Legislature of the Tribe is vested with the authority to pass laws and resolutions authorizing the Chairman of the Tribe to negotiate and enter into agreements and contracts on behalf of the Tribe pursuant to Article V, Section 6(a) of the Constitution; and,
- (c) The Legislature has identified the need for clarification in statute to the protocols governing pursuit of grant monies; and,
- (d) The Legislature has previously authorized and directed the Chairman to negotiate and execute Self-determination Act contracts, called “638-contracts”, pursuant to the Indian Self-Determination and Education Act of 1975, as amended, PL 93-638 (“ISDEAA”), with the federal government to assume and takeover the functions previously provided by federal agencies including the Indian Health Service (“IHS”); and,
- (e) The ISDEAA also provides for Self-Governance agreements or compacts with the Tribe to aggregate 638-contracts, assume new federal functions and duties, re-design the programs, authorize funding transfers, and authorize funding carry-over, and the Tribe’s decision to aggregate current and/or future 638-contracts and turning them into one Self-Governance agreement represents a continuation of the Tribe’s self-determination to provide the Tribe with maximum control of federally-funded programs and services, and an exercise of the Tribe’s sovereignty; and,
- (f) The Tribe currently contracts with the Indian Health Service (“IHS”) to administer certain functions and programs, and desires to also operate such programs and any other new programs under a Title V Self-Governance agreement; and,
- (g) The Tribe currently has an ownership interest in property and buildings that may be utilized for health care purposes related to the Self-Governance agreement, and/or the Tribe intends to purchase or lease additional suitable property or properties for such proposes; and,
- (h) The Tribe is prepared to submit, or has already submitted, three years of the Tribe’s financial audits that contain no material audit exceptions as part of its application for a Self-Governance agreement with the IHS, which demonstrates the Tribe’s financial capability.

Section 1.4 Authorization to Negotiate and Execute a Self-Governance Agreement with the IHS

- (a) The Legislature hereby passes the attached law entitled, “The Second Amendment to the Self-Determination Authorization Act of 2017 to Authorize Contracting with the Federal Government for an IHS Self-Governance Compact and Associated Funding”, authorizing and directing the Chairman to negotiate and execute a Self-Governance Compact with the IHS on behalf of the Tribe, subject to ratification by the Legislature.
- (b) The Legislature hereby authorizes the Chairman and his authorized designees to negotiate and execute 105(l) leases on tribally owned or leased buildings used to support the federal programs covered under a Self-Governance compact, including the authorization to purchase or lease additional property or properties for such purposes.
- (c) The Legislature hereby authorizes the Chairman and his authorized designees to coordinate with the IHS Office of Self Governance, and all other appropriate agencies and organizations for the compilation of all information necessary to negotiate and execute a Self-Governance Agreement, including the authority to execute any and all required documents and take such further action as may be necessary to implement this Resolution and law.